

CHAPTER 61

Pharmacy Act, 1954

ARRANGEMENT OF SECTIONS

Registration of pharmaceutical chemists

Section

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An Act to consolidate certain enactments relating to pharmacy with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949. [25th November, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Registration of pharmaceutical chemists

Appointment
of registrar
and other
officers.

1.—(1) The Council of the Pharmaceutical Society of Great Britain shall keep a fit and proper person appointed as registrar for the purposes of this Act, and may, for those purposes, appoint a deputy registrar and such clerks and other subordinate officers as the Council think fit.

(2) The Council may pay a suitable salary to any person appointed in pursuance of this section.

(3) The Council may terminate the appointment of any person so appointed.

The registers
and
registration.

2.—(1) It shall be the duty of the registrar—

(a) to maintain, in accordance with byelaws and the provisions of this Act, the Register of Pharmaceutical Chemists established in pursuance of the Pharmacy Act, 1852, which shall contain the names and addresses, and such other particulars (if any) as are prescribed, of all persons who in accordance with those provisions are entitled to have their names registered ;

(b) to cause to be prepared, in such form as is for the time being prescribed, and to be printed, published and put on sale in every year, a list (to be known as "The Annual Register of Pharmaceutical Chemists") of all names which were on the register on the last day of the preceding year.

(2) Subject to the provisions of this Act, a person shall be entitled to have his name registered if he—

(a) satisfies the registrar, or on appeal the Council, that, in accordance with provisions of the next following section or of any byelaw made under section four of this Act, he is qualified to have his name registered ; and

(b) pays to the Society such fee in respect of the registration as is prescribed ;

and different fees may be prescribed in relation to registrations in pursuance of different provisions mentioned in paragraph (a) of this subsection.

(3) Every registered pharmaceutical chemist shall pay to the Society such fee as is prescribed in respect of the retention of his name on the register in any year or, in the case of a person whose name is first registered in or after the year in which this Act comes into operation (other than a person whose name has at any time been registered under the Pharmacy Act, 1868) in respect of such retention in any year subsequent to the year in which his name is first registered ; and different fees may be prescribed for different classes of registered pharmaceutical

chemists, and provision may be made by byelaws for exempting any class of registered pharmaceutical chemists from liability to pay any such fee.

3.—(1) It shall be the duty of the Council to appoint examiners to hold examinations for the purposes of this Act (including separate examiners for Scotland to hold examinations at such place or places in Scotland as the Council determine); but the appointment of any person as such an examiner shall not—

Qualification
by examination
for
registration.

- (a) take effect until it is approved by the Privy Council;
- (b) continue in force for more than five years from the date on which it is made.

(2) Such examination fee as is prescribed shall be payable to the Society by every candidate at any such examination.

(3) It shall be the duty of the Society to permit any person appointed in that behalf by the Privy Council to be present throughout any such examination.

(4) The subjects at any such examination shall be the latin language, botany, materia medica, pharmaceutical and general chemistry and such other subjects (excluding the theory and practice of medicine, surgery and midwifery) as are prescribed; and byelaws may provide—

- (a) for periods of time and courses of study in connection with such examinations and for dividing such examinations into two or more parts;
- (b) that no person may be a candidate at any such examination unless he satisfies the Council that he has received such a general education as the Council consider adequate for a registered pharmaceutical chemist;
- (c) that no such certificate as is mentioned in the next following subsection shall be granted to any person in consequence of any such examination unless he satisfies the Council that he has received such practical training in the subjects of the examination as the Council consider adequate.

(5) Subject to the foregoing provisions of this section, the examiners may grant a certificate of competence to practise as a pharmaceutical chemist to any person who satisfies them at any such examination that he is competent so to practise; and a person to whom such a certificate is granted shall be qualified to have his name registered.

4.—(1) Byelaws may provide that any person who satisfies such conditions as to character and otherwise as are prescribed by the byelaws and either holds or has held a degree granted in respect of pharmacy by any university in the United Kingdom or a diploma granted in respect of pharmacy in any place outside

Qualification
by degree,
diploma, etc.
for
registration.

the United Kingdom or has passed the examinations necessary for obtaining such a diploma shall be qualified to have his name registered—

- (a) without his qualifying to have his name registered in accordance with the requirements of the last foregoing section and of byelaws made thereunder ; or
- (b) upon his so qualifying in accordance with those requirements relaxed to the prescribed extent.

(2) Byelaws may provide that any person who is—

- (a) a qualified military dispenser ; or
- (b) a certified assistant to an apothecary under the Apothecaries Act, 1815 ; or
- (c) registered as a pharmaceutical chemist in Northern Ireland,

and who satisfies the Council that he has sufficient skill and knowledge to practise as a pharmaceutical chemist shall be qualified to have his name registered without his qualifying as mentioned in paragraph (a) of the last foregoing subsection.

Certificates of registration.

5.—(1) Subject to the provisions of the next following subsection, it shall be the duty of the Council, on the demand of any registered pharmaceutical chemist, to issue to him without fee a certificate of registration signed by the registrar and countersigned by either the President of the Society or two members of the Council.

(2) There shall be no obligation on the Council to issue a further such certificate as aforesaid to a person to whom such a certificate has already been issued, unless the person—

- (a) satisfies the registrar that the original certificate, and any further certificate already issued to him, has been lost or destroyed ; and
- (b) pays to the Society such fee (if any) in respect of the further certificate as is prescribed.

Evidence of registration.

6.—(1) Any document purporting to be a print of the Annual Register of Pharmaceutical Chemists printed and published by authority of the registrar in any year shall, at any time before the publication of the said Annual Register for the succeeding year, be admissible in any proceedings as evidence that any person named therein is, and that any person not named therein is not, a registered pharmaceutical chemist.

(2) Any such certificate as is mentioned in the last foregoing section shall be admissible in any proceedings as evidence that the person named therein as a registered pharmaceutical chemist is a registered pharmaceutical chemist.

Removal from and restoration to the register, etc.

7. For the purposes of this Act there shall be appointed a committee of the Society (to be known as "the Statutory Committee"), and the provisions of the First Schedule to this Act shall have effect in relation to the Statutory Committee.

8.—(1) Where—

- (a) a person applying to have his name registered, or
- (b) a registered pharmaceutical chemist or any person employed by him in the carrying on of his business, or
- (c) a person whose name has been removed from the register under section twelve of this Act or any person employed by him as aforesaid,

Control of
registrations
by Statutory
Committee.

has been convicted of any such criminal offence or been guilty of such misconduct (being in a case falling within paragraph (c) of this subsection a conviction or misconduct which took place either before or after the removal of the name) as in the opinion of the Statutory Committee renders the convicted or guilty person unfit to have his name on the register, the Committee may, after enquiring into the matter—

- (i) in a case falling within paragraph (a) of this subsection, direct that the applicant's name shall not be registered, or shall not be registered until the Committee otherwise directs;
- (ii) in a case falling within paragraph (b) thereof, direct the registrar to remove the name of the registered pharmaceutical chemist from the register;
- (iii) in a case falling within paragraph (c) thereof, direct that the name removed from the register shall not be restored thereto, or shall not be restored thereto until the Committee otherwise directs;

and, where the Committee directs that a name shall be removed from the register or shall not be registered until the Committee otherwise directs, the Committee may also direct that no application to the Committee in respect of its registration, or as the case may be its restoration to the register, shall be entertained thereafter until the expiration of such period as is specified in the direction or the fulfilment of such conditions as are so specified.

(2) Where the name of any person has been removed from the register in pursuance of a direction under paragraph (ii) of the last foregoing subsection, the Committee may, either of its own motion or on the application of that person, direct the registrar to restore the name to the register, either without fee or on the payment to the Society of such fee as is prescribed in that behalf, not exceeding the fee prescribed for registration in pursuance of section three of this Act.

(3) It shall be the duty of the Statutory Committee—

(a) to give notice of any direction under this section to the person to whom the direction relates ;

(b) to give notice of any refusal of an application made under the last foregoing subsection to the applicant ;

and any notice required by this subsection to be given to any person shall be given by being sent to him in a registered letter which, in the case of a registered pharmaceutical chemist, shall be addressed to his address on the register.

Restriction
on directions
by Statutory
Committee.

9.—(1) No direction (other than a direction authorising the registration or restoration to the register of a name) shall be given by the Statutory Committee under subsection (1) of the last foregoing section without the assent of the chairman of the Committee.

(2) Where an act or omission which, under the last foregoing section, may be made the ground of a direction by the Statutory Committee involving the cesser or restriction of the right of a person to have his name registered is an act or omission on the part of an employee of that person, the Committee shall not give any such direction unless proof is given to its satisfaction of some one or more of the facts specified in the next following subsection and the Committee is of opinion that, having regard to the facts so proved, the said person ought to be regarded as responsible for the act or omission.

(3) The facts as to some one or more of which the Committee must be satisfied before giving any such direction as is mentioned in subsection (2) of this section are—

(a) that the act or omission in question was instigated or connived at by the said person ;

(b) that the said person or any employee of his had been guilty at some time within twelve months before the date on which the act or omission in question took place of a similar act or omission and that the said person had, or reasonably ought to have had, knowledge of that previous act or omission ;

(c) if the act or omission in question was a continuing act or omission, that the said person had, or reasonably ought to have had, knowledge of the continuance thereof ;

(d) in the case of a criminal offence being an offence under the Pharmacy Acts, that the said person had not used due diligence to enforce the execution of those Acts.

Appeals
against
directions, etc.

10.—(1) A person aggrieved by a direction of the Statutory Committee under section eight of this Act or the refusal of an application made under subsection (2) of that section may at any time within three months from the date on which notice of the direction or, as the case may be, of the refusal is given

to him appeal to the High Court against the direction or refusal ; and the Society may appear as respondent on any such appeal.

(2) The High Court may on any such appeal make such order as the court thinks fit in the matter including an order as to the costs of the appeal and in particular as to the payment of any such costs by the Society, whether or not the Society appear on the hearing of the appeal ; and the order of the High Court on any such appeal shall be final.

(3) It shall be the duty of the registrar to make such alterations in the register as are necessary to give effect to any such order as aforesaid.

11.—(1) A direction under paragraph (ii) of subsection (1) of section eight of this Act shall not take effect until the expiration of three months from the giving of notice of the direction as required by subsection (3) of that section or, where an appeal to the High Court is brought against the direction, until the appeal is determined or withdrawn.

Time of operation etc. of certain directions.

(2) If the High Court has dismissed an appeal against a direction under the said subsection (1) that a name shall be removed from the register or shall not, until the Committee otherwise directs, be registered or restored to the register, a direction by the Committee authorising the registration or restoration of the name shall not take effect unless it is approved by the Privy Council.

(3) When any direction under the said section eight takes effect it shall be the duty of the registrar to make such alterations in the register as are necessary to give effect to the direction.

12.—(1) If any registered pharmaceutical chemist on whom a demand has been made in the prescribed manner for the payment of any fee payable by him under subsection (3) of section two of this Act fails to pay the fee within two months from the date of the demand, the Council may direct the registrar to remove the chemist's name from the register.

Removal from register for non-payment of retention fee, etc.

(2) If any person whose name has been removed from the register under the last foregoing subsection for non-payment of any fee pays to the Society, before the expiration of the year in respect of which the fee is payable or of such longer period as the Council allow, the fee and such additional sum (if any) by way of penalty as is prescribed, it shall be the duty of the registrar, subject to the provisions of any direction in force under paragraph (iii) of subsection (1) of section eight of this Act, to restore that person's name to the register.

(3) Where a name removed from the register under subsection (1) of this section is restored thereto under the last foregoing subsection, the restoration shall, if the Council so direct, have effect from the date of the removal of the name.

Corrections of
the register.

13.—(1) It shall be the duty of the registrar—

- (a) to remove from the register the name of any registered pharmaceutical chemist who has died ;
- (b) to remove from the register any entry which the Council, by an order in writing, direct him to remove therefrom as being in their opinion an entry which was procured by fraud ;
- (c) to correct in accordance with the Council's directions any entry in the register which the Council, by an order in writing, direct him to correct as being in their opinion an entry which was incorrectly made ; and
- (d) to make from time to time any necessary alterations in the registered particulars of registered pharmaceutical chemists.

(2) The registrar may remove from the register any name to which this subsection applies by virtue of subsection (4) of this section, and the Council may direct the registrar to restore to the register any name removed therefrom under this subsection.

(3) Every registrar of births and deaths shall, on registering the death of a pharmaceutical chemist, send forthwith by post to the registrar under this Act a copy certified under his hand of the entry relating to the death in the register of deaths ; and the cost of the certificate and of sending it by post shall be payable by the registrar under this Act to the registrar of births and deaths from whom it is received.

(4) If the registrar—

- (a) sends by post to any registered pharmaceutical chemist a registered letter addressed to him at his address on the register enquiring whether he has ceased to practise as a pharmaceutical chemist or has changed his address and receives no reply to the letter within the period of six months from the date of posting it ; and
- (b) upon the expiration of that period sends in like manner to the pharmaceutical chemist in question a second similar letter and receives no reply to that letter within three months from the date of posting it,

subsection (2) of this section shall apply to the name of the registered pharmaceutical chemist in question.

Miscellaneous provisions relating to the Pharmaceutical Society

Membership
of the Society.

14. Every person whose name is registered shall, by virtue of the registration, be a member of the Society, and shall, on his name ceasing to be registered, cease to be a member of the Society.

15.—(1) The Privy Council may appoint three persons to be members of the Council of the Society in addition to the persons elected as members of the Council under the Society's Charter, and the persons appointed by the Privy Council under this section shall hold office as members of the Council for such period as the Privy Council determine. Appointment of additional members of Council.

(2) A person may be appointed under this section as a member of the Council whether he is or is not a member of the Society.

16. The Council may make such byelaws as they think necessary for the purposes of any provision of this Act referring to byelaws; but no byelaw made by virtue of this Act shall come into operation until it is approved by the Privy Council. Byelaws.

17. The Council may, out of the property of the Society and out of any property for the time being comprised in the benevolent fund established in pursuance of the Society's Charter of Incorporation, make provision for such purposes relating to the relief of distressed persons, being— The benevolent fund.

- (a) members of the Society;
 - (b) persons who at any time have been such members or have been registered as pharmaceutical chemists or chemists and druggists under this Act or any enactment repealed by, or by an enactment repealed by, this Act;
 - (c) widows, orphans and other dependants of deceased persons who were at any time members of the Society or registered as aforesaid; or
 - (d) students of the Society,
- as the Council may, subject to byelaws, determine.

Offences

18. If the registrar wilfully makes or causes to be made any falsification in any matter relating to the register or the Annual Register of Pharmaceutical Chemists or any such certificate as is mentioned in subsection (5) of section three of this Act, he shall be guilty of a misdemeanour and, in the case of a falsification relating to the said Annual Register, liable to imprisonment for a term not exceeding twelve months. Falsifications by the registrar.

19.—(1) Subject to the provisions of subsection (2) of section nine and subsection (1) of section ten of the Act of 1933 (which authorise the use of certain titles and descriptions by bodies corporate and by representatives of pharmaceutical chemists who have died or are under certain disabilities) it shall not be lawful for any person, unless he is a registered pharmaceutical chemist— Restrictions on use of certain titles, etc.

- (a) to take or use any of the following titles, that is to say, pharmaceutical chemist, pharmacist, pharmacist, chemist and druggist, druggist, or member of the Pharmaceutical Society;

(b) to take or use, in connection with the sale of goods by retail, the title of chemist.

(2) Subject as aforesaid, it shall not be lawful for any person to use, in connection with any business, any title, emblem or description reasonably calculated to suggest that he or any person employed in the business possesses any qualification with respect to the selling, dispensing or compounding of drugs or poisons other than the qualification which he in fact possesses.

For the purposes of this subsection—

(a) the use of the description “pharmacy” in connection with a business carried on on any premises shall be deemed to be reasonably calculated to suggest that the owner of the business and the person having the control of the business on those premises are registered pharmaceutical chemists; and

(b) the expression “dispensing” in relation to a poison has the same meaning as in the Act of 1933.

(3) If any person acts in contravention of the foregoing provisions of this section, he shall be liable on summary conviction, in respect of each offence, to a fine not exceeding twenty pounds and in the case of a continuing offence to a further fine not exceeding five pounds for every day subsequent to the day on which he is convicted of the offence during which the contravention continues.

Offences
relating to
certificates.

20.—(1) If any person fraudulently exhibits any certificate purporting to be a certificate of membership of the Society, he shall be guilty of a misdemeanour.

(2) If, with intent to deceive, any person—

(a) forges, or uses, or lends to or allows to be used by any other person any certificate issued under the Pharmacy Acts; or

(b) makes or has in his possession any document so closely resembling such a certificate as to be calculated to deceive,

he shall be liable on summary conviction, in respect of each offence, to a fine not exceeding twenty pounds and, in the case of a continuing offence, to a further fine not exceeding five pounds for every day subsequent to the day on which he is convicted of the offence during which the contravention continues.

In the application of this subsection to England or Wales, the expression “forges” has the same meaning as in the Forgery Act, 1913.

(3) If any person to whom a certificate of registration has been issued in pursuance of section five of this Act ceases to be a registered pharmaceutical chemist he shall, before the expiration

of fourteen days from so ceasing, transmit the certificate to the registrar for cancellation, and, if he fails to do so, he shall be liable on summary conviction, in respect of each offence, to a fine not exceeding five pounds and to a further fine not exceeding one pound for every day subsequent to the day on which he is convicted of the offence during which the default continues.

21. Notwithstanding anything in the Magistrates' Courts Act, 1952 or the Summary Jurisdiction (Scotland) Act, 1908, proceedings for an offence under section nineteen of this Act or subsection (2) or subsection (3) of the last foregoing section may be commenced at any time within the period of twelve months next after the date of the commission of the offence. Extension of time for certain prosecutions.

Supplemental

22.—(1) For the purpose of exercising any powers conferred by this Act on the Privy Council, the quorum of the Privy Council shall be three. Exercise of powers conferred on Privy Council.

(2) Any document purporting to be—

(a) an instrument of appointment or approval made by the Privy Council under this Act or any other instrument so made ; and

(b) signed by the Clerk of the Privy Council or by any other person authorised by the Privy Council in that behalf,

shall be evidence of the fact that the instrument was so made and of the terms of the instrument.

23. Any sum received by the Society by way of fee or penalty in pursuance of any provision of this Act shall be applicable for the purposes of the Society. Application of fees, etc.

24.—(1) In this Act, unless the context otherwise requires, the following expressions have the meanings hereby assigned to them respectively, that is to say— Interpretation.

“ the Act of 1933 ” means the Pharmacy and Poisons Act, 1933 ;

“ byelaws ” means byelaws made by the Council ;

“ the Council ” means the Council of the Society ;

“ the Pharmacy Acts ” has the same meaning as in the Act of 1933 ;

“ prescribed ” means prescribed by byelaws ;

“ the register ” means the Register of Pharmaceutical Chemists established in pursuance of the Pharmacy Act, 1852 and maintained in pursuance of subsection (1) of section two of this Act ;

“registered” means registered in the register, and “to register” and “registration” shall be construed accordingly;

“registered pharmaceutical chemist” means a person whose name is registered;

“registrar” means the registrar appointed in pursuance of section one of this Act;

“the Society” means the Pharmaceutical Society of Great Britain;

“year”, in subsection (3) of section two and subsection (2) of section twelve, means a period of twelve months beginning on such date as is for the time being determined by the Council.

(2) In the application of this Act to Scotland any reference to the High Court shall be construed as a reference to the Court of Session.

(3) Any reference in this Act to any enactment is a reference to that enactment as amended by any subsequent enactment.

Transitional
and
consequential
provisions,
and repeals.

25.—(1) Without prejudice to the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to repeals),—

(a) the provisions of the Second Schedule to this Act shall have effect; and

(b) the enactments specified in the Third Schedule to this Act shall have effect subject to the amendments specified in the said Third Schedule, being amendments consequential upon the provisions of this Act.

(2) Subject to the provisions of the said Second Schedule, the enactments specified in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of the said Fourth Schedule.

Short title,
commence-
ment and
extent.

26.—(1) This Act may be cited as the Pharmacy Act, 1954, and shall come into operation at the expiration of one month beginning with the date of its passing.

(2) This Act shall not extend to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 7.

THE STATUTORY COMMITTEE

Constitution

1.—(1) Subject to the provisions of the next following sub-paragraph, the Statutory Committee (hereafter in this Schedule referred to as “the committee”) shall consist of six members, of whom one, who shall be chairman, shall be appointed by the Privy Council, and of whom five shall be appointed by the Council.

(2) If by reason of illness or other infirmity the chairman becomes temporarily incapable of performing the duties of his office, the Privy Council may appoint another person to be a member of the committee and to act in the place of the chairman; and in relation to any period during which any person is appointed under this sub-paragraph, any reference to the chairman of the Statutory Committee in any enactment (other than the foregoing provisions of this Schedule) shall be construed as a reference to that person.

2. A person may be appointed to be a member of the committee whether he is or is not a member of the Society or of the Council, but—

(a) the chairman shall be a person having practical legal experience; and

(b) if, on the occurrence of a vacancy among the members appointed by the Council, none of the remaining members so appointed is a pharmaceutical chemist resident in Scotland, the person appointed to fill the vacancy shall be a pharmaceutical chemist so resident.

3.—(1) Subject to the provisions of the next following sub-paragraph, a member of the committee, other than a person appointed under sub-paragraph (2) of paragraph 1 of this Schedule, shall hold office for a period of five years, and a person appointed under the said sub-paragraph (2) shall hold office for the period (not exceeding six months) for which he is appointed; and any member shall be eligible for re-appointment at the expiration of his period of office.

(2) Any member of the committee may at any time resign his office by giving notice in writing of his resignation—

(a) in the case of a member appointed by the Council, to the registrar;

(b) in any other case, to the Clerk of the Privy Council; and the body by whom a member of the committee is appointed may remove the member from his appointment for inability to perform his duties or for misbehaviour.

Procedure

4.—(1) The quorum of the committee shall be three, of whom the chairman shall be one.

(2) The committee may act by a majority of the members present, and in the case of an equality of votes the chairman shall have a casting vote.

1st SCH.
—cont.

5.—(1) The committee may make regulations as to the procedure to be followed by the committee in exercising the jurisdiction conferred upon it by this Act and the Act of 1933, but no such regulations shall come into operation until they are approved by the Privy Council.

(2) The Privy Council may approve any such regulations with or without modifications; but where the Privy Council propose to modify any such regulations, they shall give the committee a reasonable opportunity of making observations to the Privy Council on the proposed modifications and shall, before approving the regulations, take into consideration any observations made by the committee by virtue of this sub-paragraph.

(3) The power conferred by this paragraph to approve regulations shall be exercisable by statutory instrument, and any statutory instrument approving regulations made under this paragraph shall be subject to annulment in pursuance of a resolution of either House of Parliament.

Expenses

6. The Society shall pay to members of the committee such reasonable travelling expenses as are fixed by the Council with the approval of the Privy Council, and may pay to any member of the committee such fees as are so fixed; and all other expenses of the committee shall be defrayed by the Society.

Section 25.

SECOND SCHEDULE

TRANSITIONAL PROVISIONS

1. The Council may direct the registrar to register any name which was removed in pursuance of section ten of the Pharmacy Act, 1868 from the register of chemists and druggists.

2. If any person whose name has been removed in pursuance of subsection (4) of section one of the Act of 1933 from the register of chemists and druggists for non-payment of any fee pays to the Society, before the expiration of such period (if any) as the Council allow, the fee and any additional sum prescribed in pursuance of subsection (2) of section twelve of this Act, it shall be the duty of the registrar, subject to the provisions of any direction of the Statutory Committee which is in force in relation to the name, to register the name of that person; and, if the Council so direct, the registration shall have effect from the date on which the name was removed from the register of chemists and druggists.

3. Where any person whose name has been removed as mentioned in the last foregoing paragraph or a person employed by him in the carrying on of his business, has (whether before or after the removal of the name) been convicted of any such criminal offence or been guilty of such misconduct as, in the opinion of the Statutory Committee, renders the convicted or guilty person unfit to have his name on the register, the Committee may, after inquiring into the matter, direct that the name removed as aforesaid shall not be registered or shall not be registered until the Committee otherwise directs; and where the Committee directs that a name shall not be registered

until the Committee otherwise directs, it may further direct that no application to the Committee in respect of the registration of the name shall be entertained until the expiration of such period as is specified in the direction or the fulfilment of such conditions as are so specified.

2ND SCH.
—cont.

4. Where the name of any person was absent from the register immediately before the commencement of this Act in pursuance of a direction given under subsection (1) of section seven of the Act of 1933 for the removal of the name from the register of chemists and druggists, the Statutory Committee may, either of its own motion or on the application of that person, being an application made consistently with any direction of the Statutory Committee applicable to him, direct the registrar to register the name of that person, either without fee or on payment to the Society of such fee as is prescribed in pursuance of subsection (2) of section eight of this Act; but where the High Court has dismissed an appeal against the direction given under the said subsection (1), a direction under this paragraph shall not take effect unless it is approved by the Privy Council.

5. The provisions of subsection (3) of section eight, section nine, section ten and subsection (3) of section eleven of this Act shall apply in relation to a direction of the Statutory Committee under paragraph 3 of this Schedule and the said provisions (except section nine) shall apply in relation to such a direction under paragraph 4 thereof as they apply in relation to a direction under the said section eight, and the provisions of subsection (3) of the said section eight and the said section ten shall apply in relation to a refusal of an application under the said paragraph 4 as they apply in relation to such a refusal as is mentioned in paragraph (b) of subsection (3) of the said section eight.

6. Any direction given under subsection (1) or subsection (2) of section seven of the Act of 1933 or section four of the Pharmacy and Medicines Act, 1941 which, immediately before the commencement of this Act, related to the Register of Pharmaceutical Chemists shall be deemed to be a direction duly given under the corresponding provision of this Act on the date on which the direction was actually given.

7. Nothing in subsection (2) of section twenty-five of this Act shall affect any appointment, byelaw, demand, nomination, order or regulation made, approval, certificate, confirmation, direction or notice given, register published, registration effected, proceeding instituted or thing done under any enactment repealed by this Act, and, subject to the provisions of the last foregoing paragraph, any such appointment, approval, byelaw, certificate, confirmation, demand, direction, nomination, notice, order, register, registration, proceeding or thing shall, if in force immediately before the commencement of this Act, continue in force and be deemed to be made, given, published, effected, instituted or done, as the case may be, under the corresponding provision of this Act, and, in the case of an appointment or demand be deemed to have been duly made under the said corresponding provision on the date on which it was actually made.

2ND SCH.
—cont.

8. Any reference in any document (excluding the Act of 1933) to any Act or enactment repealed by this Act shall be construed as a reference to this Act or to the corresponding enactment in this Act; and any reference in any document (including the Act of 1933) to the Statutory Committee appointed under the Act of 1933 shall be construed as a reference to the Statutory Committee appointed under this Act.

9. Every certificate of registration which was issued before the thirty-first day of December nineteen hundred and fifty-three and which certifies that the person therein specified is registered as a chemist and druggist according to the provisions of the Pharmacy Act, 1868, shall, for such period as is prescribed, be deemed to be a certificate of registration issued in pursuance of section five of this Act certifying that the person therein specified is a registered pharmaceutical chemist, and the said certificate shall throughout the said period have effect accordingly.

10. Where any offence (being an offence for the continuance of which a penalty was provided) has been committed under any enactment repealed by this Act, proceedings may be taken under this Act in respect of the continuance of the offence after the commencement of this Act in the same manner as if the offence had been committed under the corresponding provisions of this Act.

11. In this Schedule "the register of chemists and druggists" means the register of chemists and druggists established under the Pharmacy Act, 1868.

Section 25.

THIRD SCHEDULE

CONSEQUENTIAL AMENDMENTS

The Pharmacy and Poisons Act, 1933

(23 & 24 Geo. 5. c. 25)

After section eleven there shall be inserted the following section—

"11A. The Statutory Committee shall not, without the assent of the chairman of the Committee, direct—

- (a) that a body corporate shall cease to be or shall be disqualified for any period from being an authorised seller of poisons or that all or any of the premises of a body corporate shall be removed from the register of premises or be disqualified for any period from being registered therein; or
- (b) that the representatives of a pharmacist shall cease to be authorised sellers of poisons or cease to be entitled to use any title, emblem or description".

In section twenty-five, in subsections (1) and (4), after the words "Part I of this Act" there shall be inserted the words "and of section nineteen and subsections (2) and (3) of section twenty of the Pharmacy Act, 1954".

In section twenty-nine, in the definition of "Byelaws", after the word "Society" there shall be inserted the words "and approved by the Privy Council"; in the definition of "Certificate of registration" for the words "section thirteen of the Pharmacy Act,

1868" there shall be substituted the words "section five of the Pharmacy Act, 1954"; in the definition of "Pharmacy Acts" for the words from "Pharmacy Act, 1852" to "Pharmacy Act, 1908" there shall be substituted the words "Pharmacy Act, 1954"; and in the definition of "Registrar" for the words "section four of the Pharmacy Act, 1852" there shall be substituted the words "section one of the Pharmacy Act, 1954".

3RD SCH.
—cont.

The Pharmacy and Medicines Act, 1941

(4 & 5 Geo. 6. c. 42.)

In section four, in subsection (6), for the words "the said section fourteen" there shall be substituted the words "section fourteen of the principal Act".

In section seventeen, in subsection (1), for the words "and 'Statutory Committee' have the same meanings" there shall be substituted the words "has the same meaning"; and in the definition of "registered pharmacist" for the words from "has the same meaning" to "Pharmacy Act, 1953" there shall be substituted the words "means a person whose name is registered in the register of pharmaceutical chemists".

FOURTH SCHEDULE

Section 25.

REPEALS

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Vict. c. 56.	The Pharmacy Act, 1852.	The whole Act.
21 & 22 Vict. c. 97.	The Public Health Act, 1858.	The whole Act.
31 & 32 Vict. c. 121.	The Pharmacy Act, 1868.	The whole Act.
8 Edw. 7. c. 55.	The Poisons and Pharmacy Act, 1908.	The whole Act.
19 & 20 Geo. 5. c. 31.	The Pharmacy Act, 1929.	The whole Act.
23 & 24 Geo. 5. c. 25.	The Pharmacy and Poisons Act, 1933.	Sections one to seven; in subsection (2) of section nine the words from the beginning to "emblems and descriptions"; in subsection (1) of section fourteen the words "if he is a pharmacist, at his address in the register and"; in subsection (5) of section fourteen the words "the register or"; and the First Schedule.
4 & 5 Geo. 6. c. 42.	The Pharmacy and Medicines Act, 1941.	Subsections (1) to (5) of section four; and section six.
11 & 12 Geo. 6. c. 11.	The Medical Practitioners and Pharmacists Act, 1947.	Part II.
1 & 2 Eliz. 2. c. 19.	The Pharmacy Act, 1953.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Apothecaries Act, 1815	55 Geo. 3. c. 194.
Pharmacy Act, 1852	15 & 16 Vict. c. 56.
Pharmacy Act, 1868	31 & 32 Vict. c. 121.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Poisons and Pharmacy Act, 1908	8 Edw. 7. c. 55.
Summary Jurisdiction (Scotland) Act, 1908... ..	8 Edw. 7. c. 65.
Forgery Act, 1913	3 & 4 Geo. 5. c. 27.
Pharmacy and Poisons Act, 1933	23 & 24 Geo. 5. c. 25.
Pharmacy and Medicines Act, 1941... ..	4 & 5 Geo. 6. c. 42.
Consolidation of Enactments (Procedure) Act, 1949.	12, 13 & 14 Geo. 6. c. 33.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.
Pharmacy Act, 1953	1 & 2 Eliz. 2. c. 19.

CHAPTER 62

Post Office Savings Bank Act, 1954

ARRANGEMENT OF SECTIONS

General

Section

1. Power of Postmaster-General to receive deposits.
2. General power to make regulations.

Provisions as to deposits

3. Making of deposits.
4. Limit on amount of deposits.
5. Payment of interest on deposits.
6. Withdrawal.
7. Regulations as to deposits.
8. Settlement of disputes.
9. Fees taken by Registrar on reference of disputes.
10. Secrecy.
11. Transfer of deposits to other savings banks.
12. Transfer of deposits from other savings banks.
13. Transfer of deposits from and to overseas savings banks.
14. Deposits by charitable societies, etc.
15. Annual account of deposits to be laid before Parliament.

Management of money deposited in post office savings banks

16. Money to be paid over to National Debt Commissioners for investment.
17. Securities in which the Commissioners may invest.
18. Annual income account.
19. Adjustment of balances on income accounts.